

**UNITED STATES OF AMERICA
BEFORE THE FEDERAL MARITIME COMMISSION**

TCW, INC.

Claimant,

v.

EVERGREEN SHIPPING AGENCY (AMERICA)
CORPORATION & EVERGREEN LINE JOINT
SERVICE AGREEMENT

Respondents.

FMC Docket No. 1966(I)

**MOTION OF THE AMERICAN PYROTECHNICS ASSOCIATION
TO FILE A BRIEF *AMICUS CURIAE***

Pursuant to Rule 73 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.73, the American Pyrotechnics Association (APA) moves with the consent of Claimant, and with Respondents taking no position on the matter, for leave to file the accompanying *amicus* brief addressing from the perspective of its members the issues identified in the Commission's April 26, 2021 order. APA is the principal safety and trade association for the fireworks industry. Founded in 1948, APA's mission is to encourage safety in the design and use of all types of fireworks, to provide industry information and support to its members, and to promote the responsible regulation of the fireworks industry.

APA represents regulated and licensed manufacturers, importers, distributors, wholesalers, retailers, and professional public display fireworks companies. Along with their subsidiaries, APA's over 250 member companies are responsible for 90 percent of the fireworks manufactured, imported, distributed, and professionally displayed in the United States. Ninety-eight percent of

APA member companies are classified as small businesses. Because nearly all backyard consumer fireworks come directly from China, and the vast majority of professional display fireworks are manufactured in China, APA's members are heavily dependent – indeed almost exclusively dependent - on international ocean shipping, and many have been directly affected by practices of the type at issue in this docket.

In *Sea-Land Service, Inc. -- Possible Violations of the Shipping Act*, 29 S.R.R. 1326, 1329 (2003), the Commission rejected prior more restrictive practices and simply required *amicus* movants, at any stage of a proceeding, to state their interests in the proceeding and explain why their participation as an *amicus curiae* would be desirable. The APA has done so by explaining that its members are directly affected by the practices at issue in this proceeding, and respectfully submits that its perspective could be useful to the Commission. Three amicus briefs have already been submitted in support of Respondent in this docket without opposition.

The brief is filed conditionally herewith within seven days of the filing of the Claimant's brief, as required by Rule 73(c) and the Commission's April 26, 2021 order. Counsel for the APA has conferred with the parties pursuant to Rule 71(a). Claimant consents to the motion. Respondents did not state any opposition, advising that their "consent is not required" and that they "will abide by whatever decision the Commission makes in regard to [the] motion."

Because APA has shown a reasonable interest in the proceeding, and that its participation would be desirable, it meets the Commission's standards and should be permitted to participate as *amicus curiae*. See *Sea-Land*, 29 S.R.R. at 1330 (allowing four separate industry associations to file as *amici* in the penalty phase of an enforcement proceeding to address the policy implications of the fine proposed in the particular case).

WHEREFORE, APA respectfully requests that its motion for leave to file an *amicus* brief in this proceeding be granted and that its *amicus* brief filed conditionally with this motion be accepted.

Respectfully submitted,

/s/ Barry Hartman

Barry Hartman
John Longstreth
K&L Gates LLP
1601 K Street, NW
Washington, DC 20006-4759
Barry.Hartman@klgates.com
John.Longstreth@klgates.com

July 2, 2021

Certificate of Service

I hereby certify that I have this 2d day of July, 2021 served a true and correct copy of the foregoing motion for leave to file an *amicus* brief, along with a copy of the brief filed conditionally therewith, upon all parties of record in this proceeding via electronic mail and have also provided a copy to the Secretary for filing on the Commission's first class mail.

/s/ John Longstreth

John Longstreth